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NEGOTIATED AGREEMENT

BETWEEN THE

GROVEPORT MADISON LOCAL SCHOOL DISTRICT

BOARD OF EDUCATION

AND

LOCAL #312

**OHIO ASSOCIATION OF PUBLIC SCHOOL
EMPLOYEES/AFSCME Local 4/AFLCIO**

July 1, 2021

THROUGH

JUNE 30, 2024

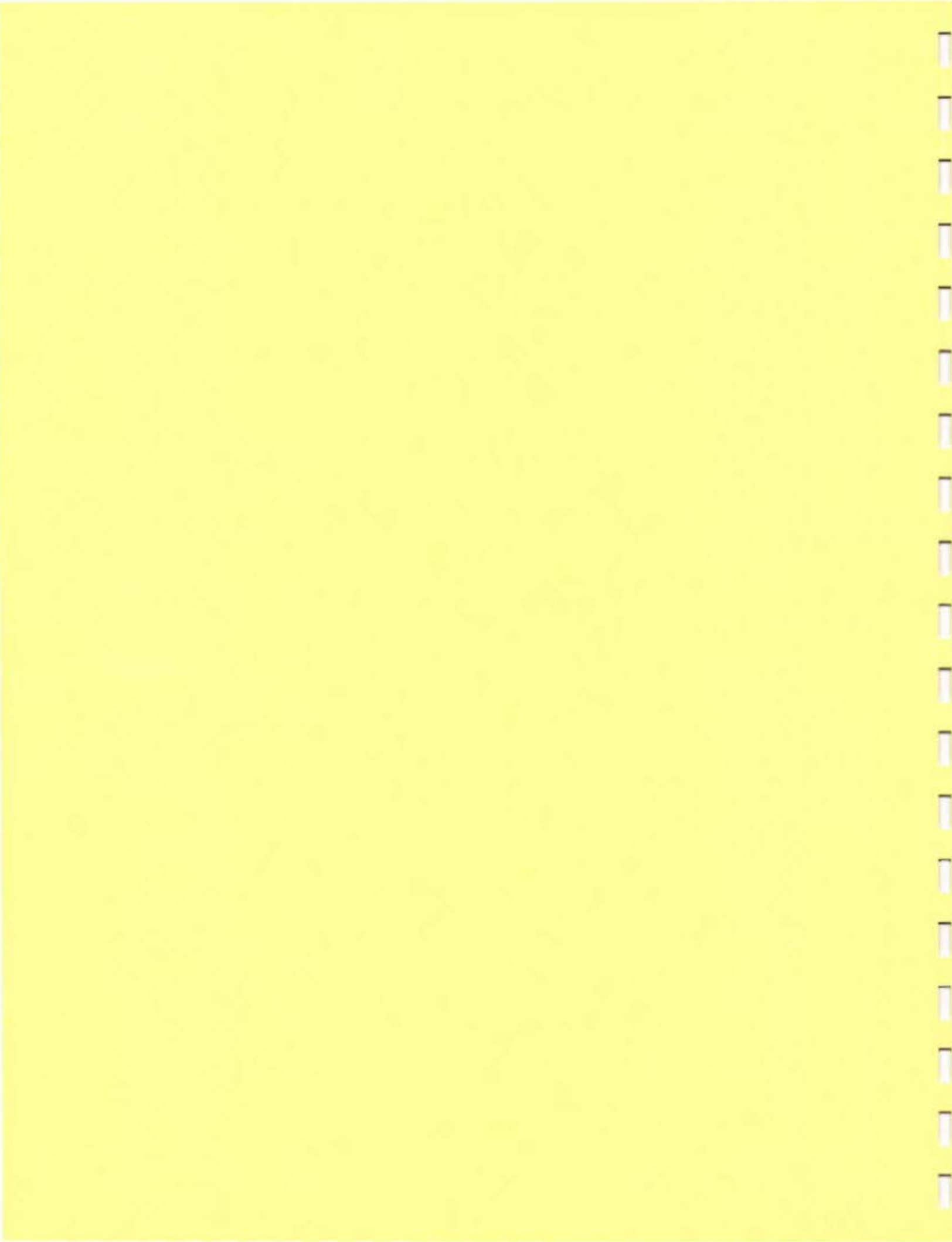


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Article 1

RECOGNITION AND DEFINITIONS

1.01 The Board of Education recognizes Local #312 of the Ohio Association of Public School Employees as the sole and exclusive representative for all regular non-teaching employees who are under contract with the Board of Education, as per below.

1.02 For purposes of recognition and negotiations, the bargaining unit shall consist of and be limited to employees in the following classifications:

- A. Cafeteria
Head Cook
Cook
- B. Custodial
Head Custodian
Custodian
Custodian- Inter-School Delivery
- C. Maintenance
Head Maintenance
Grounds Maintenance
Maintenance
- D. Head Secretary
Clerical I (School Building Clerical)
Aides

Excluded from the bargaining unit are all substitute employees, supervisors, directors, coordinators, administrative employees, confidential employees, and all other employees of the Board of Education. For purposes of this Agreement, confidential employees shall include the following classifications:

- A. Secretary to the Superintendent
- B. Secretary(ies) to the Treasurer
- C. All Clerical II employees (District Service Center Clerical)

1.02 The recognition of the Union shall be for the term of this Negotiated Agreement.

1.03 All members of the bargaining unit have the right to become a member of the Union and the right to refrain from such without intimidation or coercion.

1.04 This recognition constitutes an agreement between the Board of Education and the Union to provide the framework in a good faith attempt to reach mutual agreement regarding matters related to terms and condition of employment for members of the bargaining unit. The Board of Education and the Union are under no obligation to agree to any proposal or to make any concessions. The Board of Education cannot reduce, negotiate or delegate its legal responsibility.

1.05 The Union shall represent all employees of the school system within the bargaining unit equally and without discrimination regardless of their membership or non-membership in the Union.

1.06 Definitions

- A. Administrator means the appropriate Central Office Administrator.
- B. Agreement means this Negotiated Agreement.
- C. Board of Education means the Board in its official capacity.

- D. Days means calendar days.
- E. District means the Groveport Madison Local School District.
- F. Employee or Unit Member means a member of the bargaining unit.
- G. Employer means anyone authorized to act on behalf of the Board of Education.
- H. Immediate Supervisor means the principal in the relevant building, or the appropriate administrator, as designated by the Employer.
- I. Local or Union means OAPSE Chapter #312.
- J. Superintendent means Superintendent or designee.
- K. Work days means week days, other than school holidays.
- L. Seniority
 - 1. System Seniority shall be defined as total continuous service within the District as computed from the employee's most recent date of employment.
 - 2. Job Classification Seniority shall be defined as the length of employment by an employee in a particular job classification as computed from the employee's most recent date of entry into such job classification.
 - 3. Seniority shall cease when an employee is no longer employed in a bargaining unit position.
 - 4. Authorized leaves of absence do not constitute an interruption in continuous service, however, while on leave of absence seniority will not continue to accrue.
 - 5. Continuous service does not include service as a Title I aide.

Article 2

BARGAINING PROCEDURES

2.01 The Employer and Union shall each designate a bargaining team of no more than six (6) individuals, including an outside representative. All bargaining shall be conducted exclusively between the teams.

2.02 Between ninety (90) and one hundred twenty (120) calendar days prior to the expiration date of the Negotiated Agreement, either party may notify the other of a desire to commence bargaining. At the initial negotiation session, the Union and Employer shall exchange issues proposed for discussion. The bargaining agenda shall then be set and no additions shall be made without mutual consent. All meetings shall be held at times and places mutually agreed to by the parties.

2.03 TIME LIMITS:

- A. If agreement is not reached within sixty (60) calendar days from the first bargaining session, the provisions of Section 2.08 will be implemented.
- B. Either party may call caucuses during negotiations for a period of up to thirty (30) minutes.
- C. Bargaining sessions shall last a maximum of three (3) hours.

- D. These limits may be modified by mutual agreement.
- E. The Employer shall grant release time, as necessary, for those employees on the Union negotiating team.

2.04 Prior to and during the period of bargaining, each party will provide the other, upon written request, all regularly and routinely prepared public information concerning issues under consideration.

2.05 No statements or releases pertaining to negotiations shall be made to the media during the period of negotiations, except in the event of an impasse or as otherwise agreed to by the parties.

2.06 The bargaining teams shall have the authority to indicate tentative agreement pending final approval by the Board of Education and the Union. When tentative agreement has been reached on all issues, they shall be reduced to writing and submitted to the Board of Education and the Union for approval. Following approval by both parties, the Agreement shall be binding on both parties.

2.07 The members of the Union agree that they will neither cause nor sponsor any strike, slowdown, or other work stoppage during the term of this Agreement. In the event the Union violates this provision, it shall be subject to appropriate penalties by the Employer. In recognition of this continuous performance pledge, the Board of Education agrees there will be no "lock-out" of members of the Union except if such "lock-out" is a result of the Board of Education's inability to pay which results in the closing of all regular schools.

2.08 RESOLVING DIFFERENCES

- A. Mediation - Following the sixty (60) day period described in Section 2.03 above, either party may submit the unresolved issues to mediation. The Federal Mediation and Conciliation Service will be utilized and mediation will conform to their rules and guidelines.
- B. The expenses of the mediator, if any, shall be shared equally by the parties.
- C. Recommendations of the mediator shall not be made public and shall not be binding on the parties.
- D. These procedures are intended to supersede the statutory impasse procedures of Chapter 4117 of the Ohio Revised Code.

2.09 PREPARATION AND PRINTING OF CONTRACT

Upon ratification of the Agreement by both parties, the Employer will prepare the final contract for signatures and printing. When the Agreement has been signed, the Ohio Association of Public School Employees (OAPSE) will print the contracts. The cost of printing shall be shared equally by both parties.

Article 3

UNION AND EMPLOYEE RIGHTS

3.01 No employee shall be subject to discrimination, coercion or intimidation in the exercise of their employment right or rights under this Agreement because of or as a result of the employee's race, color, creed, national origin, age, sex, sexual orientation, handicap, if able to perform duties, Union membership or the failure to secure or maintain Union membership. The Union shall not be held liable under this section for a decision in which the Union does not participate.

3.02 Union representatives may, with the approval of the Administrator, conduct grievance investigations on school property providing it does not interfere with anyone's work assignment.

3.03 The Local shall have the right to use school facilities for meetings. Meetings of the Local shall be scheduled so as to not interrupt the normal school days and shall be pursuant to Board policy governing the use of buildings.

3.04 The Local shall have the right to reasonable use of the copiers for union purposes, and will reimburse the Board \$25.00 per year for that privilege.

3.05 The Local shall have the right to use the school mail system and bulletin boards as approved by the Administrator.

3.06 The Employer will provide paid professional leave with no reimbursement of expenses for local delegates to attend the Union delegate convention. No more than three (3) delegates may attend such convention. An additional sixteen (16) hours of paid release time shall be provided to the Local President annually.

3.07 Members of the Local may attend the Central District OAPSE Day meeting once a year without loss of pay, as long as it is on COTA day. Each employee must provide the Administrator with satisfactory proof of such attendance. The employee shall give written notice to the Administrator of his/her intention to attend said meeting not less than seven (7) calendar days prior to the meeting. A maximum of ten (10) employees may take off work to go to the meeting, unless additional attendance is authorized by the Administrator.

3.08 All employees will be eligible to be released from duty to attend a Local contract ratification or election of officers meeting. Such meetings shall not be held during the school day. The length of time away from duty shall not exceed two (2) hours for election of officers meetings or four (4) hours for ratification meetings. Minimum notice to the immediate supervisor shall be one (1) day. Prior to departure either the building is to be cleared of persons or necessary coverage verified.

3.09 Upon request to the Administrator, the Local President or designee may be granted reasonable time to visit schools and facilities.

3.10 With the approval of the immediate supervisor in advance, second shift employees can attend monthly Local #312 meetings if they make up their hours on that same day.

3.11 The Employer will provide a copy of each month's Board agenda to the Union President.

The Union President can access each month's Board agenda on the district website through BoardDocs.

3.12 The local president or his/her designee shall meet with each new hire within two (2) weeks of the new hires start date for Union orientation. This meeting shall take place on paid time and shall not exceed ten (10) minutes in duration.

Article 4

MANAGEMENT RIGHTS

4.01 The Board of Education hereby retains and reserves unto itself, without limitation, all powers, rights, authority, duties and responsibilities conferred upon and vested in it by the laws and the constitution of the State of Ohio, and of the United States.

4.02 The exercise of these powers, rights, authority, duties and responsibilities by the Board of Education, the adoption of policies, rules, regulations, and practices in furtherance thereof, and the use of judgment and discretion in connection therewith shall be limited only by the specific and express terms of this Agreement and the Ohio Revised Code.

Article 5

GRIEVANCE PROCEDURE

5.01 DEFINITIONS AND RULES

- A. A grievance is defined as an alleged violation of the interpretation or application of a specific Article and Section of this Agreement.
- B. No adjustments to any grievance shall be made without the Local having the right to be present, nor shall any adjustment be made inconsistent with the terms and conditions of this Agreement.
- C. Unit members may have a Local and/or OAPSE representative present at each formal grievance hearing, if they so desire.
- D. Any grievance not brought or appealed within the time frames specified herein shall be considered as having been waived by the grievant and the Union, and shall not be eligible for further appeal. Should the Employer fail to respond within the required time limits, the grievant may present the grievance at the next step as if the grievance had been denied. The time limitations provided for in this Article may be extended by mutual written agreement between the Employer and the grievant or Union.

5.02 INFORMAL CONFERENCE

Within ten (10) work days of an event giving rise to a potential grievance, the employee shall initiate a meeting with his/her immediate supervisor in an attempt to settle the problem informally. The informal conference shall take place prior to the filing of the written grievance. A problem which cannot be resolved informally may then be processed as a grievance. The grievant and the immediate supervisor shall sign and date the grievance form indicating that the informal conference occurred.

5.03 STEP ONE (IMMEDIATE SUPERVISOR)

Within ten (10) work days of the informal conference (but in no event later than twenty (20) work days from the event giving rise to a grievance), the employee or group of employees will present the grievance in writing to the immediate supervisor or designee. The employee must state on the grievance form the specific Article and Section of the Agreement which he/she believes has been misinterpreted or misapplied. Within ten (10) work days after the presentation of a grievance, the immediate supervisor or designee shall conduct a hearing. Within ten (10) work days of the hearing, the immediate supervisor or designee shall give his/her answer in writing to the employee or group of employees.

5.04 STEP TWO (ADMINISTRATOR)

If the grievance is not resolved in Step One, the employee or group of employees may, within ten (10) work days of receipt of the immediate supervisor's answer, appeal the Step One answer by submitting to the Administrator the answer to Step One with the original grievance statement. Within ten (10) work days of the receipt of the grievance at Step Two, the Administrator shall conduct a hearing with the parties involved. The Administrator shall give the employee or group of employees an answer in writing no later than ten (10) work days after said hearing.

5.05 STEP THREE (SUPERINTENDENT)

If the grievance is not resolved in Step Two, the employee or group of employees may, within ten (10) work days of receipt of the Administrator's answer, appeal the Step Two answer by submitting to the Superintendent the answer at Step Two with the original grievance statement. Within ten (10) work days of the receipt of the grievance at Step Three, the Superintendent shall conduct a hearing with the parties involved. The Superintendent shall give the employee or group of employees an answer in writing no later than ten (10) work days after said hearing.

5.06 STEP FOUR (GRIEVANCE MEDIATION)

If the grievance is not resolved in Step Three, the Union shall submit the grievance to Federal Mediation and Conciliation Service (FMCS) grievance mediation within ten (10) work days of receipt of the Step Three answer. The parties shall first attempt to agree on a mediator, and if unable to do so will ask FMCS to appoint a mediator. The mediation will be conducted pursuant to FMCS rules.

5.07 STEP FIVE (BINDING ARBITRATION)

If the grievance is not resolved in Step Four, the Union shall have the right to appeal the dispute to final and binding arbitration. Such appeal must be made within ten (10) work days from the date of the final Step Four mediation session by filing a written notice with the Superintendent. The parties shall mutually request a list of nine (9) arbitrators from the FMCS. Both parties may reject one list and ask for a replacement. The arbitrator shall be chosen pursuant to FMCS rules.

5.08 POWER OF THE ARBITRATOR

- A. The arbitrator's decision shall be final and binding on all parties.
- B. He shall have no power to add to, subtract from, disregard, alter or modify any of the terms of this Agreement, nor shall he make any decision contrary to law.

5.09 PAYMENT OF ARBITRATOR

The costs for the services of the arbitrator, including per diem expenses, if any, and his actual and necessary travel and subsistence expenses and the cost of any hearing room, will be borne by the losing party. The arbitrator must identify the predominantly prevailing party for purposes of this provision, even if the award is split. Under no circumstances is the arbitrator empowered to split his/her costs absent an agreement to that effect by both parties. All other costs will be borne by the party incurring them.

Article 6

REDUCTION IN FORCE

6.01 In the event the Board of Education determines it is necessary to reduce employees due to: lack of funds, lack of work, declining enrollment or abolishment of positions, the Superintendent will follow the procedures listed below in determining bargaining unit contract suspension.

- A. The number of employees affected by the reduction in force will be kept to a minimum in so far as practical, by the use of attrition.
- B. When it is necessary to reduce employees for reasons other than abolishment of a position, the layoff shall occur in order of reverse classification seniority, with the least senior employee in the classification(s) affected laid off prior to those with more classification seniority.
- C. When it is necessary to reduce an employee due to the abolishment of a position, the employee whose position is abolished shall have the right to bump any less senior (classification seniority) employee in the same classification who has the same or a lesser number of regularly scheduled hours. Any employee bumped pursuant to this Section C shall also have the same bumping rights, until all bumping is completed.
- D. Should the laid off employee have accrued seniority as a regular employee in another classification, he/she shall have the right to bump the least senior employee in the other classification, based upon total system seniority.

- E. In the event of identical seniority, the employee to be reduced shall be determined by lottery draw.
- F. When the Employer determines it may become necessary to reduce staff, a list of positions that may potentially be affected will be prepared and made available, along with the system seniority list and classification seniority list. These lists will be posted in all buildings and a copy sent to the president of Local #312. At least twenty-one (21) days prior to the effective date of reductions the Employer will notify all affected employees by certified mail.
- G. It is the responsibility of the employee affected by the potential layoff to keep the Employer updated on his/her current address for notification purposes.
- H. No daily hourly reductions will occur except by mutual agreement of the Employer and the Union. Where feasible, layoffs will take precedence over hourly reductions.
- I. RECALL
 - 1. Bidding within a classification will take place prior to any recalls. Bidding outside of a classification will take place after any recalls.
 - 2. Members who are on a recall list will be recalled in inverse order of reduction within the classification affected.
 - 3. No employees new to the District will be employed in a classification until all members on the recall list for that classification are given the opportunity for re-employment.
 - 4. In the event an employee is notified of a recall in person or by certified mail and does not respond within ten (10) days to accept the position, he/she will lose all recall rights.
 - 5. An employee on the recall list will be given preferential consideration as a substitute within their eligible classification.
 - 6. Employees who are laid off shall maintain their recall rights for a two (2) year period, provided such employees keep a current address on file with the Employer, and provided the employee responds to any recall within ten (10) days of the notice. Failure to respond to a recall notice or the rejection of the position offered shall result in a termination of recall rights, unless the position offered is for less hours than the employee had at the time of layoff.

Article 7

VACANCIES AND CONTRACT ISSUES

7.01 DEFINITION OF VACANCY

- A. A vacancy is defined as a bargaining unit position that the Employer intends to permanently fill.
- B. The Employer is not required to fill "open" positions.
- C. At any time during the process of filling the vacancy the Employer may determine not to fill the position after all.
- D. If the Employer does not intend to fill a position, it will inform the Local of the reason.

7.02 POSTING OF VACANCIES

- A. Notification of vacancies shall be posted on the intranet for 5 days and sent to all staff via district email. Employees may apply for positions by emailing the Human Resource Director's classified administrative assistant.
- B. Vacancy postings shall contain at least the following information:
 - 1. Title of the position.
 - 2. Application deadline.
 - 3. Starting date of the position, if known.
 - 4. Qualifications for the position.
 - 5. Anticipated number of days per year and hours per day.
 - 6. Job description, if requested and available.

7.03 CRITERIA FOR EVALUATING APPLICATIONS

- A. Qualifications of the applicant, including but not limited to the applicant's education, relevant experience, aptitude for the position, attendance record, and performance evaluations.
- B. Results of written and/or performance examinations.
- C. Recommendations of the building principal and/or supervisors involved.
- D. Where the foregoing factors are equal, preference will be given to the internal applicant with the greatest system seniority.

7.04 AWARDING OF POSITIONS

- A. Bidding Within Classification
 - 1. Notwithstanding the criteria outlined above, if one or more applicant(s) for a vacancy are currently working in the same classification as the vacancy, the applicant from that classification with the most classification seniority will be awarded the position.
- B. Bidding Outside of Classification/Outside Applicants
 - 1. All qualified internal applicants will be granted an interview. If an internal applicant is judged by the Employer to be the most qualified applicant for the vacancy, he/she will be awarded the position.
 - 2. Vacancies may be filled from outside the bargaining unit only if the most qualified applicant is not from within the bargaining unit.
 - 3. The Employer has the sole discretion to determine whether an applicant is the "most qualified applicant."
 - 4. Internal applicants that have been deemed qualified and awarded the new position, shall be paid at the step equal to or greater than their current rate.

7.05 PROBATION PERIOD

A. For New Employees

1. Employees who are new to the District will serve a probation period of one hundred and twenty (120) actual work days probation period.
2. During this probation period the new employee may be terminated for any reason, and such termination is not grievable. No reason needs to be provided for termination during the probation period.

7.06 MISCELLANEOUS VACANCY PROVISIONS

- A. In all cases the Employer shall make the final hiring and probation period decisions, and any decision made shall not be grievable.
- B. If an employee's interest in a position has been denied, he/she will, upon request, receive a written or oral explanation of the reasons for the denial.
- C. Unit members may apply for clerical or supervisory non-bargaining unit vacancies. Such non-bargaining unit vacancies shall be posted on the intranet.
- D. The Employer shall make every effort to post temporary general summer work prior to the end of school. Any employee may apply for such work. All internal applicants will be granted an interview. Employees who are awarded temporary summer work will receive the posted wage rate for such summer work. External applicants will be allowed to work summer hours if there are no qualified employees who sign up for summer work.
- E. When a substitute has been in a bargaining unit position for ninety (90) working days, the Employer must either post the position as a vacancy or eliminate the position, unless the substitute is filling in for a person on a leave of absence.
- F. Any employee in a position who may be experiencing conflict in their assigned position should request a meeting for resolution with their supervisor. If the situation cannot be resolved at that level, a meeting can be requested with the Director of Human Resources and the Local President. The result of this meeting will determine whether or not reassignment within the district is necessary.

7.07 INITIAL CONTRACT AND CONTRACT NONRENEWAL

Employment contracts and contract non-renewals shall operate pursuant to ORC Section 3319.081, except that new employees must actually work at least one hundred twenty (120) work days before being eligible for a two year contract under ORC Section 3319.081.

Article 8

DISCIPLINARY ACTION

- 8.01 Discipline shall be imposed on employees only for just cause as determined by the appropriate administrator.
- 8.02 Disciplinary action may include, but is not limited to, the following: verbal and written reprimands, dismissal, demotion, suspension and termination.

8.03 When the possibility of suspension or termination exists, the Employer will schedule a conference with the employee to discuss the charges. Prior to or at the conference, the Employer will provide the charges to the employee. The employee will be given the opportunity to respond to the charges in the conference. The employee has the right to have a union representative present at the conference.

8.04 Following the conference, the Employer will issue disciplinary action, if appropriate. If the employee decides to grieve the disciplinary action, the grievance will be considered to begin at Step 2 (Administrator).

8.05 The Union and the Employer recognize that emergency situations can occur. If the employee's presence would present a danger to students or fellow employees or the District, the Employer may immediately suspend the employee with pay pending the conference referred to in Section 8.03 above. However, should any ensuing disciplinary action be upheld or go unchallenged, the Employer may withhold pay for the initial emergency suspension.

8.06 The reasons required for suspension and discharge shall be in accordance with Section 3319.081 of the Ohio Revised Code. The procedures used for suspension and discharge shall be in accordance with this Agreement.

8.07 Employees have the right, upon request, to have a union representative present at the imposition of any disciplinary action. Employees will not lose pay for attending disciplinary hearings.

Article 9

PERSONNEL FILES

9.01 The official personnel file for each employee shall be maintained in the Administration office.

9.02 Employees shall have the right to review the contents of their personnel file with the Administrator or designee.

9.03 Any employee who wishes to exercise the right provided by this section may be accompanied by another individual of his choice.

9.04 If any employee disputes the accuracy, relevance, timeliness or completeness of the information within the employee's personnel file, he shall request the Employer to make an investigation to ensure that information contained within the file is maintained as is necessary to assure fairness in any determination made with respect to the person on the basis of the information. The Employer shall notify the employee of the result of such investigation and shall delete any information proven to be untrue or inaccurate.

9.05 If the employee is dissatisfied with the action taken by the Employer, the employee may place a brief statement of the employee's position within the personnel file. The employee may also include within the personnel file a statement indicating that the employee believes certain specified information is inaccurate, irrelevant, outdated or incomplete.

9.06 When the Employer places a letter containing a complaint against a unit member in the employee's personnel file, the Employer shall notify the employee.

9.07 Upon an employee's request, the Administrator shall review a document in the employee's personnel file which pertains to a discipline or performance problem which is at least two (2) years old. If the Administrator determines the problem has been corrected, he/she shall attach a note to the document indicating such.

9.08 When the Employer receives a letter of commendation for a unit member, the employee shall be notified and a copy of the letter shall be placed in the employee's personnel file.

Article 10

INVOLUNTARY TRANSFERS

10.01 Occasionally, it may be necessary to involuntarily transfer employees. In all cases of transfer, the Administrator will make the final decision in keeping with the provisions contained in the Agreement.

10.02 Notice of an involuntary transfer will be given to the employee(s) as soon as practicable.

10.03 An involuntary transfer will be made only after the employee involved has been offered the opportunity to meet with the Administrator. The employee may, at his option, have a union representative present at the meeting. The employee may also decline the opportunity to have such a meeting.

10.04 In cases involving involuntary transferees, the wishes of the individual employee will be honored to the extent that these considerations do not conflict with the requirements and best interests of the school district and pupils.

10.05 An employee being involuntarily transferred will be placed in an equivalent or lesser position, that involves no reduction in total compensation and no impairment of tenure for the remainder of the effective contract year.

10.06 If an employee is involuntarily transferred due to position elimination, he/she has the option of returning to a vacancy that occurs in the exact same position and building from which he/she was transferred, for a period of twelve (12) months from the date of the transfer. The employee shall be given the opportunity to return before the vacancy is posted.

Article 11

JOB DESCRIPTIONS AND WORKPLACE ISSUES

11.01 Prior to implementing a change in a bargaining unit job description, the Employer shall offer the Local President an opportunity to review the revised job description. The Employer shall have final authority on the composition of all job descriptions.

11.02 Employees will receive a copy of their job description upon hire or request. Upon request, a copy of all bargaining unit job descriptions shall be provided to the Local President. If the Union desires a change in a job description they shall bring the issue to a labor-management meeting.

11.03 The Employer shall define the maintenance work expected of a building custodian. Any building custodian who is requested to do a task which he/she feels inadequate to perform properly shall notify his/her immediate supervisor of such perceived inability.

11.04 The Employer will provide a safe work place in compliance with applicable State and Federal laws and regulations. Unit members will make a written report to their supervisor of conditions they believe to be unsafe. Employees are required to immediately (as soon as possible) report all injuries or accidents on the job using the District accident report form.

Article 12

CAFETERIA

12.01 Employees in buildings requiring extra duty will have the option to work the event on a rotating basis. If they reject that extra work, then options will be given to employees in other buildings in no particular order.

12.02 A cook wishing to work as a sub in another classification must turn in a written request stating that to the personnel office. Cooks will not be permitted to sub in another classification if the subbing would result in the

individual working more than forty (40) hours per week, unless the work qualifies for straight time only pursuant to Section 13.07.

12.03 When a cook is absent from work, cafeteria employees in the same building working fewer hours shall be eligible to work that position at their regular hourly rate as follows: The employee with the next most hours will be offered the extra time, and so on until an employee accepts the extra time. In the event of a tie, seniority shall prevail. An employee may not accept the extra time if it will result in overtime.

12.04 All food service employees shall be paid at his/her hourly rate for all hours of mandatory cook meetings that occur before or after his/her regular scheduled hours.

12.05 Two (2) new shirts shall be provided to each cafeteria employee per year, at no cost to the employee. Such shirts shall be provided no later than October 1 of each year.

12.06 There shall be a cook on duty when the Kitchen (as opposed to just the cafeteria) is in use.

Article 13

HOURS OF WORK AND OVERTIME

13.01 The normal work week shall be forty (40) hours, Monday through Friday. The Employer reserves the right to employ individuals who may be required to work a forty (40) hour week between the period of 12:01 a.m. Sunday through midnight Saturday. The Employer will set the daily starting time for all employees. The forty (40) hour work week does not apply to part-time employees. This Article shall not be construed as a guarantee of hours of work per day or per week. Employees will be informed of their initial summer schedule at least five (5) work days prior to the last student day.

13.02 Employees are expected to be on time for work. Failure to report on time may subject the employee to discipline. Employees who work at a second job for another employer, even if that job involves servicing Groveport students, are expected to make the Groveport job their primary position. Working at a second job is not a valid excuse for not reporting to work on time at Groveport.

13.03 Except as otherwise provided herein, one and one-half (1½) times the employee's regular straight-time hourly rate shall be paid in cash or compensatory time for all approved overtime hours worked in excess of forty (40) hours in one work week, unless the extra hours occurred as a result of an employee's request to revise his/her schedule. Overtime and compensatory time can only be authorized by the Administrator. Compensatory time may only be taken when school is not in session. No more than forty (40) hours of comp time can be accumulated by any one employee.

- A. For purposes of computing overtime, all time spent in active pay status shall count as hours worked except for sick leave and personal leave.
- B. The earning of compensatory time must be approved by the Administrator and agreed to by the employee. The arrangement of compensatory time off shall be by mutual agreement between the employee and immediate supervisor.

13.04 When overtime or additional hours is authorized it will be offered to employees within that classification within the building in order of job classification seniority on a continuous rotating basis, except for secretaries.

When secretarial overtime or additional hours is authorized, it will be offered first to the person who normally performs that duty. If that person does not accept it, or if it is not a duty that is normally performed by any secretary, it will be offered in order of job classification seniority within the building, on a rotating basis.

13.05 When the appropriate building administrator is informed of a custodial absence, (for day shift absences, at least twelve (12) hours advance notice is required for this section to apply) then custodians in the building where overtime is needed due to the absent employee shall be offered such overtime, on a continuous rotating basis, up to a

maximum of four (4) hours daily, prior to a substitute being assigned. Once a sub is called in for an absence, the sub may remain in that position for the duration of the absence.

13.06 The need for overtime or additional hours shall be determined on a day-to-day basis at the discretion of the building administrator when school is in session, and at the discretion of the Administrator during the summer break. A list will be kept in each building of the employees in that building interested in working overtime. Only employees on that list need to be called when overtime is being offered.

13.07 SUBSTITUTING IN A DIFFERENT CLASSIFICATION

- A. Pursuant to the Fair Labor Standards Act, employees who occasionally perform substitute work in a different classification than their regular job will not be paid time and one-half for that work, even if the employee works more than forty (40) hours in that week.
- B. Employees who wish to sub in a different classification from their regular job must receive a one-time written authorization from the Administrator. Another authorization may be required by the Administrator if the employee's ability to perform the work has changed.
- C. Employees subbing into a different classification shall receive the same rate of pay as their current classification for the classification they are subbing in.
- D. Exceptions to the restrictions contained in Sections 13.04 – 13.07 may be made by express written authorization of the Administrator.

13.08 Employees may be subject to additional or different assignments during days when they cannot perform regular job assignments. There shall be no extra compensation or double pay for this assignment. Such assignment(s) shall be within the employee's classification.

13.09 Starting with the fourth (4th) full day in a contract year that an employee is assigned to a classification which has a higher pay scale than their normal work assignment, the employee shall be paid at their same step on the higher pay schedule. An employee who is assigned to work less than a full day in the higher classification shall not be eligible for the higher pay scale. The determination as to whether the employee is assigned to a higher classification will be made by the Building Administrator. This section does not apply to employees subbing into a different classification.

13.10 The minimum pay for maintenance and custodial employees who are called out from home after their regular work hours for non-calamity reasons, on weekends, or on holidays shall be three (3) hours.

13.11 Each eight (8) hour employee is guaranteed a thirty (30) minute lunch and two (2) ten (10) minute breaks per day. For purposes of this Section, full-time aides are considered to be eight (8) hour employees. The times for the lunch and breaks shall be mutually agreed to by the immediate supervisor and the applicable employees. If the times cannot be mutually agreed to, the immediate supervisor will set the times. The thirty (30) minute lunch shall be duty free, except for emergency circumstances. Employees may leave the building during lunch, but must sign in and sign out, or punch a time clock if such a system is implemented. Violations of the lunch or break times may result in disciplinary action, including docking.

13.12 If an employee is (asked) to work on a Sunday and actually works the employee will be paid one and one-half (1½) times their regular hourly rate for all hours worked.

13.13 Overtime rates will not be pyramided or duplicated.

Article 14

PERSONAL LEAVE

14.01 Employees are eligible for up to three (3) days of personal leave per contract year, with full pay. Personal leave should not be considered as vacation time, which employees are entitled to, but is for emergencies and special events. The District has the right to ask an employee for the reason he/she is taking personal leave. Employees are expected to use the days judiciously.

14.02 The employee shall enter personal leave through the online automated absence management system used by the district at least two days prior to the leave.

14.03 Personal leave will not be approved on the first and last day of school or professional development days.

14.04 Personal leave will not be approved for the day preceding or following a school holiday or vacation period except in emergency circumstances.

14.05 For purposes of this article, emergency is defined as a serious, unexpected situation, outside of the employee's control, that requires immediate action.

14.06 Personal leave will not be approved if the person requesting the personal leave would earn additional money while on such leave except in the case of honorariums with the permission of the Superintendent.

14.07 Exceptions to the above procedures may be made by the Administrator provided good and sufficient reason(s) is given.

14.08 Employees who are employed for less than a full contract year shall earn personal leave according to the following plan:

- | | | |
|----|--------------------------------|-------------------------------------|
| A. | 0-10 days of employment | - 0 days of personal leave. |
| B. | 10-70 days of employment | - one (1) day of personal leave. |
| C. | 71-135 days of employment | - two (2) days of personal leave. |
| D. | 136 or more days of employment | - three (3) days of personal leave. |

14.09 Unused personal days shall be automatically converted into sick leave on a one-to-one basis at the end of each employee's duty year or rolled over as personal days, up to a maximum of five (5) days at the employee(s) discretion. Such conversion will occur for all employees prior to September 1.

Article 15

HOLIDAYS

15.01 Employees shall be entitled to the following paid Holidays:

- | | |
|----|---|
| A. | <u>AIDES, INTER-SCHOOL DELIVERY AND CAFETERIA:</u> January 1, Presidents Day, Martin Luther King Day, Good Friday, Memorial Day, Labor Day, Thanksgiving Day and the day after, Christmas Eve, Christmas and New Year's Eve. |
| B. | <u>CLERICAL</u> (at least 11½ months per year): January 1, Presidents Day, Martin Luther King Day, Good Friday, Memorial Day, July 4, Labor Day, Thanksgiving Day and the day after, and December 24, 25, 26 and 31. Clerical employees who work less than 11½ months per year shall be entitled to the holidays listed in this section which fall during the employee's duty year. |

- C. MAINTENANCE AND CUSTODIAL: January 1, Presidents Day, Martin Luther King Day, Good Friday; Memorial Day, July 4, Labor Day, Thanksgiving Day and the day after, and December 24, 25, 26, and 31.
- D. Except as specified above, unit members employed less than nine (9) months shall be entitled to holidays according to Section 3319.087 ORC.
- E. For the maintenance, custodial and clerical classifications only, there will be one holiday day to be taken during winter break. The holiday must be scheduled by each employee with the approval of his/her supervisor.

15.02 To be eligible for a paid holiday, employees must work the preceding and the next following scheduled work days before and after such holidays, except for sick leave supported by a doctor's excuse, personal leave, or vacation.

15.03 When an employee is required to work on his/her designated holiday, he/she shall have the option of being paid, in addition to his/her regular pay for that day, overtime at the rate of time and one-half for all hours actually worked on the holiday. All regularly scheduled hours not worked on a holiday shall be paid at the regular hourly rate.

Article 16

VACATION

16.01 All full-time employees who are employed for a duty year of eleven (11) calendar months or more shall be granted vacation according to the following schedule:

- A. For employees in their first year of regular employment with the District:
 - 1. Work less than 120 days - no vacation.
 - 2. Work between 120 and 179 days - one (1) week.
 - 3. Work 180 days or more - two (2) weeks.
- B. Employees who have completed 1-8 consecutive years of service with the District - two (2) weeks.
 - 1. Employees who have completed 9-14 consecutive years of service with the District - three (3) weeks.
 - 2. Employees who have completed 15-20 consecutive years or more of service with the District - four (4) weeks.
 - 3. Employees who have completed 21-25 consecutive years with the District - the same number of days as the number of years completed (e.g., after 22 years - 22 days).
 - 4. Employees who have completed more than 25 consecutive years in the District - five (5) weeks.
- C. Effective July 1, 2021, any employee promoted into a position which accrues vacation shall be awarded vacation in accordance with the above schedule based on their total consecutive years of service to the district.

16.02 Starting with the second year of employment with the District, vacation will be credited on July 1 of each year. Vacation must be scheduled with the approval of the immediate supervisor by June 1. Vacation must be completed by the end of the employee's duty year.

16.03 SUMMER VACATION SCHEDULING

- A. During June, July and August, no more than two (2) custodians in the high school and junior high, one (1) custodian at the middle school and each elementary school, and two (2) maintenance employees, may be on vacation at any one time.
- B. During the month of July no vacation may be taken at any time for the one (1) twelve-month clerical at the high school.
- C. Summer vacations should be arranged and discussed as a team with each building principal prior to the last day of school each year. Vacation day requests outside of summer months should be submitted twenty-four (24) hours prior to the day requested.
- D. After the Section B meeting, any additional summer vacation days may be scheduled pursuant to Section 16.02 (subject to the limitations contained in Section 16.03(A)).

16.04 If an employee leaves the District during a duty year there will be no payment to the employee, or recovery from the employee, for any used or unused vacation for that year.

Article 17

SICK AND BEREAVEMENT LEAVE

17.01 USE AND ACCUMULATION OF SICK LEAVE

- A. Employees shall earn sick leave at the rate of one and one-fourth (1¼) days per month. Upon approval of the Administrator, employees may use sick leave for absence due to personal illness, pregnancy, injury, exposure to contagious disease which could be communicated to others, and for absence due to illness, injury, or death in the employee's immediate family.
- B. Employees must furnish a written, signed doctor's note justifying sick leave if the sick leave is three (3) or more consecutive days. If medical attention is required, the employee's statement shall list the name and address of the attending physician and the dates when he/she was consulted. The doctor's note must be signed and turned in prior to the leave, if possible, or immediately upon return from sick leave.
- C. Sick leave accumulation shall be unlimited. Sick leave may be taken in increments of ¼ day, ½ day, or a full day.
- D. For purposes of this section, the immediate family shall consist of the following: spouse, child, parent, step parents, sibling, step siblings, grandparent, grandchild, aunt or uncle, in-law, or any other relative living in the home of the employee.
- E. All absences must be entered into AESOP by the employee.

17.02 REGULATION OF USE OF SICK LEAVE

- A. Repeat from 17.01 B
- B. Employees who are on sick leave for at least eight (8) days in a contract year, or at least four (4) first or last days of the week in a contract year, must meet with their supervisor and the Administrator in order to discuss and substantiate their use of sick leave. Employees who reach this stage may be required to meet with their supervisor and the Administrator following each additional sick leave

absence in the contract year. Such meeting may be waived by the Administrator in appropriate circumstances.

- C. Employees who are on sick leave for at least fifteen (15) days in a contract year, on the first or last days of the week, or if a pattern of absences is determined in a contract year, or the first day immediately preceding or following a holiday, may be subject to disciplinary action up to and including termination if the use of sick leave cannot be substantiated to the satisfaction of the Administrator.
- D. If an employee is on sick leave the day before or after a holiday, the employee will be charged for their normal duty day hours of sick leave use for the holiday itself, unless he/she is on sick leave for at least two (2) days before or after the holiday, or produces a written doctor's excuse for the day.

17.03 BEREAVEMENT LEAVE

- A. Employees will be allowed to use up to five (5) days of sick leave per incident to attend the funeral of a spouse, child, parent, or sibling. Employees will be allowed to use up to three (3) days of sick leave to attend the funeral for the other members of their immediate family, as defined in Section 1701 or any other relative living in the home of the employee. Bereavement leave must be taken on consecutive days.
- B. Sick leave used for bereavement purposes will not count towards the provisions contained in Section 1702(B) above, and will not be counted against an employee on their evaluation.

Article 18

JURY DUTY

18.01 In the event an employee is notified to appear for jury duty, he/she shall submit such notice to the Treasurer's office as soon as possible.

18.02 Time required for the employee to serve as a juror shall be release time not chargeable to either sick leave or personal leave.

18.03 The employee shall receive his/her regular rate of pay during the time he/she is required to serve as a juror. To receive this pay the employee must produce satisfactory verification from the Court confirming that the employee actually performed jury duty on that day (such as a copy of the jury duty check).

Article 19

LEAVES WITHOUT PAY

19.01 REGULAR LEAVE

- A. Employees are eligible to request a leave without pay (LWOP) for up to two (2) consecutive school years, in accordance with ORC Section 3319.13. Requests for LWOP must be made in writing to the Administrator. Leave requests should be turned in as soon as possible, but in no event no later than two (2) weeks prior to the next regularly scheduled Board meeting, unless it is for an emergency. Requests for LWOP of six months or more will be approved or disapproved by the Board of Education. Requests for LWOP of less than six months will be approved or disapproved by the Superintendent.
- B. The Board of Education will pay the Employer's share of applicable insurance premiums through the month in which the LWOP begins. Following that month, the employee may continue insurance

coverage by paying the entire premium (both employee and Employer shares) to the Treasurer's office no later than the first week of the month.

- C. All applicable paid leave must be used before LWOP may be used.
- D. LWOP will not be granted for use as vacation/personal time without specific written authorization from the Administrator.
- E. Employees who have run out of leave and take time off may be subject to discipline, unless the employee is on FMLA, or would be eligible for FMLA in that circumstance if they worked enough hours per year. Discipline will be at the discretion of the Administrator.
- F. An employee who takes LWOP without Employer approval will be considered absent without leave and subject to disciplinary action, up to and including termination.
- G. An employee who is on LWOP for an entire month will not accrue any paid leave during that month.

19.02 FAMILY LEAVE ACT

The rules, regulations and forms pertaining to the Family and Medical Leave Act are contained in Appendix D of this Agreement. The provisions of Appendix D supersede any contrary leave provisions contained in this Agreement.

19.03 WORKERS COMPENSATION

Employees who qualify for workers compensation benefits must miss twenty (20) work days due to the injury before they are eligible to receive workers compensation pay. Prior to that time, employees are eligible to use their sick leave.

Article 20

CALAMITY DAYS/DELAY DAYS

20.01 All employees who are required to work on a calamity day shall be paid double time for all hours actually worked, and regular time for the remainder of their regular work schedule. (For example, an employee who is regularly scheduled to work eight (8) hours, and actually works four (4) hours, will receive twelve (12) hours pay for the day.) Calamity day pay can only be earned during an employee's regular shift. Hours worked outside of an employee's regular shift will be paid at straight time, unless they qualify for overtime. Employees who are required to report to work on a calamity day shall receive at least two (2) hours pay.

20.02 Maintenance employees are required to report for work on days that school is closed due to calamity days. Employees who are not automatically required to report on a calamity day must be available to be called at their home phone between the hours of 6:00 a.m. – 9:00 a.m. Employees who are not able to be reached between the hours of 6:00 a.m. – 9:00 a.m. will be charged a full day of personal leave. Any employee who is required to work on a calamity day shall report to their building at the time designated by the Building Administrator, which shall not be earlier than 9:00 a.m. Employees who are already at work when a calamity day is declared do not have to go home and return after 9:00 a.m., but do not receive double time pay unless required to stay by the Building Administrator.

20.03 A rotation list of custodians shall be established for each building. If less than all of the custodians in a building are called in on any given calamity day, the custodians who are required to report will be determined by reverse seniority. The rotation list will restart at the beginning of each school year. If no custodian in the rotation is able to come in, the head custodian will be required to come in.

20.04 The Board has the discretion to call in any or all employees to work on a calamity day.

20.05 Employees who are called in to work on a calamity day are required to report. If an employee cannot make it in to work due to weather conditions, the employee will be charged for a full day of personal leave, or if they have none left they will receive no pay for the calamity day. The only exception to this is if the Franklin County Sheriff's Dept. declares a Level 3 emergency, or if an employee lives outside Franklin county and has to drive through a county on the way to work that has been declared a Level 3 (at the time of the commute). If a Level 3 emergency is declared in Franklin County while school is in session, the employees will be released by the appropriate administrator after the students have left and the basic necessities have been completed. If school is not in session, employees will be released after the basic necessities have been completed.

20.06 For purposes of this Article, the Supervisor of Buildings and Grounds shall be the Building Administrator for all maintenance employees.

20.07 LATE START DAYS

All employees shall report to work at their regularly scheduled start time on days that school is delayed, unless an exception is made by the appropriate Administrator. Calamity day pay on late start days will begin at the employee's scheduled start time, or their actual start time, whichever is later.

20.08 PARTIAL CLOSINGS

If any part of the District closes for a calamity while the remainder of the District stays open, the Employer has the right to reassign the affected employees in any way it deems appropriate within the scope of their job description, including but not limited to a different work station or different building. Such employees will not be eligible for calamity pay for hours worked during a partial closing. If any employees are sent home (or not called in) during a partial closing, they will receive their normal pay for that day.

Article 21

PAYROLL ISSUES

21.01 Employees shall be notified by a posting in each building at least two (2) weeks prior to any additional deductions or additional money on a present deduction being taken from their check. This does not include additional state, federal or city tax. This shall pertain only to financial adjustments affecting groups of employees.

21.02 If the Employer makes an underpayment in a payroll check that is fifteen dollars or more, the mistake will be corrected immediately. The employee will return the original check. If the original check has been cashed, the Employer will pay the difference between the incorrect amount and the correct amount.

21.03 If the Employer discovers that an overpayment has been made to any employee, the Treasurer's office shall notify the employee of such overpayment and make arrangements with the employee involved for repayment, provided such repayment is made prior to the end of the contract year, or the payback shall not exceed the period of the error.

21.04 Payroll checks shall be distributed in twenty-four (24) pays. Pay dates shall be the 15th and 30th of the month. When pay dates fall on Saturday or Sunday, checks shall be distributed the preceding Friday.

21.05 If the Employer deems it economically feasible to change paydays of the 15th and 30th of the month to twenty-six (26) pays per calendar year, Local #312 is in agreement with the proposal.

21.06 Employees desiring a payroll deduction for the Franklin County School Employees' Federal Credit Union shall sign a payroll deduction authorization form provided by the Treasurer.

21.07 All employees shall have mandatory direct deposit of their paychecks.

21.08 Employees will receive direct deposit notification by email unless they previously "opted-out" by written notice to the Treasurer's office prior to July 1, 2012.

- 21.09 The duty day calendar shall be distributed to each employee no later than July 15th of each year.
- 21.10 Salary notices shall be distributed to each employee no later than July 1st of each year.
- 21.11 The Board shall pay the full cost for required FBI/BCI checks for employees.

Article 22

RETIREMENT PAYMENT

22.01 GENERAL

- A. Retirement pay shall be a one-time lump-sum payment to eligible employees according to the following provisions.

22.02 ELIGIBILITY

- A. An employee's eligibility for retirement pay shall be determined as of the final date of employment. The criteria are as follows:
1. The employee retires from the District.
 2. Retirement shall be defined as disability or service retirement as specified in ORC Section 3309.34. (School Employees Retirement System).
 3. The employee must be eligible for disability or service retirement as of his/her last date of employment with the District.
 4. The employee must, within one hundred eighty (180) days of the last day of the employment with the District, prove acceptance into the retirement system by having received and cashed his/her first retirement check.
 5. The employee must sign a form provided by the Employer when he/she picks up the District's retirement check certifying that all of the above eligibility criteria have been met.

22.03 BENEFIT CALCULATION

- A. The retirement pay benefit shall be calculated according to the following:
1. Multiply the employee's accrued, but unused, sick leave by one-fourth ($\frac{1}{4}$).
 2. Multiply the product times the per diem rate of pay appropriate for that individual's placement on the base salary schedule.
 3. The amount of benefit calculated in steps 1 and 2 above shall not exceed the value of ninety (90) days of accrued, but unused, sick leave.
 4. Employees who retire with over two hundred (200) unused sick leave days will receive an extra severance pay day for every fifty (50) full days of accumulation. [For example, an employee who retires with two hundred fifty (250) days of sick leave will receive five (5) extra severance days.

- 22.04 Receipt of payment of accrued, but unused, sick leave shall eliminate all sick leave credit accrued by the employee.

Article 23

INSURANCE

23.01 HEALTH INSURANCE

All employees who regularly work twenty (20) or more hours per week are eligible for either single or family hospitalization, major medical and prescription drug insurance coverage. The Employer will provide these benefits from a carrier of its choice.

- A. Effective August 1, 2018, the Employer will pay 90% of the premium for 6-8 hour employees, and 75% of the premium for 4-5 hour employees.
- B. The Board will maintain a Section 125 Plan for the payment of premiums.
- C. If the GMLEA agrees at any time to health insurance deductibles, those same deductibles will automatically be incorporated into this Contract, and become applicable to bargaining unit employees at the same time that they become applicable to GMLEA employees. No additional negotiations with OAPSE Local #312 will be required for those deductibles to go into effect.

23.02 DENTAL INSURANCE

All employees who regularly work twenty (20) or more hours per week are eligible for either single or family dental insurance coverage at a benefit level equal to that provided during the last school year (including orthodontist at agreed levels). The Board will provide the benefit from a carrier of its choice.

- A. The Board agrees to pay the following amounts toward the cost of the monthly premiums:

<u>Coverage</u>	<u>Board's Contribution</u>
Family	100%
Single	100%

23.03 LIFE INSURANCE

The Employer will purchase group term life insurance for all employees based on the following formula:

<u>Hours Worked</u>	<u>Insurance</u>	<u>Premium</u>
10-20 hours per week	\$10,000	Board pays full
More than 20 hours per week	\$50,000	premium

Employees will be provided booklets explaining the details of each of the above insurance programs as they are made available by the insurance carrier(s).

23.04 If a husband and wife both work for the school district, the family coverage premium shall be determined based on the employee who works the most hours. Alternatively, the husband and wife can each take a single plan.

23.05 Employees who work less than twenty (20) hours per week are not eligible for Board-paid health or dental insurance.

23.06 INSURANCE COMMITTEE

A standing insurance committee consisting of up to four administrators and four unit members will meet periodically to discuss insurance issues and exchange information. The unit members on the committee will be given the opportunity to provide input prior to any change in carriers.

Article 24

UNION DUES DEDUCTIONS

24.01 Annual dues for employees who choose to be members of the union and who authorize the withholding of such dues in writing shall be deducted in twenty-two (22) equal and consecutive installments beginning with the first pay period in October. Dues shall be mailed directly to the state office with a list of employees paying dues in each month. Annual dues shall be continuous in nature and revocable only in accordance with the Membership/Dues Authorization Application.

24.02 It is the responsibility of the Union to resolve any and all errors and adjustments with its members from said payroll deductions. The Union shall indemnify and hold the Employer harmless from any and all claims, demands, or suits, or any other actions arising from the implementation of this Article.

24.03 The Employer agrees to deduct from the wages of any employee who is a member of the Union, a "PEOPLE" deduction as provided for in written authorization. Such authorization must be executed by the employee and may be revoked by the employee at any time by given written notice to both the Employer and the Union. The Employer agrees to remit any deductions made pursuant to this provision promptly to the Union together with an itemized statement showing the name of each employee from whose pay such deductions have been made and the amount deducted during the period covered by the remittance. "PEOPLE" deductions shall be sent by the Employer to the Union by separate check from membership dues.

Article 25

SUBCONTRACTING

25.01 The Board of Education shall not subcontract out work currently performed by bargaining unit employees.

25.02 O.W.A. students will not be used to replace bargaining unit employees.

25.03 ESC employees shall be limited to Security, and up to five (5) one-on-one Aides.

Article 26

DRESS CODE

The dress code shall be as follows:

A. CUSTODIANS/MAINTENANCE

Employees will be provided with five (5) district shirts upon initial employment, and three (3) additional shirts per year after that. The shirts will say either "maintenance" or "support staff", as appropriate. Employees may purchase additional shirts at their own expense. Closed toe and closed heel shoes are required. Long pants must be worn during the school year, unless otherwise authorized by the supervisor. Sweat pants are not permitted.

B. CAFETERIA

Employees shall wear khaki, black or white pants, white or black tennis shoes, and a plain (no writing) shirt. Additional dress standards for cafeteria employees are contained in Appendix F.

C. SECRETARIAL

Employees shall wear no less than business casual dress, unless there is a dress down day or another special dress event. Prohibited clothing includes, but is not limited to, jeans, sweatshirts, tank tops, short shorts, or any overly revealing clothing.

D. GENERAL

All employees must dress appropriately for the circumstances. Summer dress may be somewhat more relaxed than during the school year.

Article 27

AIDES

27.01 FILLING OF AIDE VACANCIES

- A. A vacancy is defined as a bargaining unit position that the Employer intends to permanently fill.
- B. The Employer is not required to fill "open" positions.
- C. At any time during the process of filling the vacancy the Employer may determine not to fill the position after all.
- D. If the Employer does not intend to fill a position, it will inform the Local of the reason.
- E. Vacancies will only be filled during the summer, unless the Employer, in its discretion, determines otherwise. Vacancies occurring during the school year may be filled on a temporary basis, and if so will then be posted and filled during the summer pursuant to Section 27.02 below.
- F. Vacancies in Aide positions will be governed solely by this Article, and not by Article 7.

27.02 POSTING OF AIDE VACANCIES

- A. Notification of vacancies shall be posted in locations where all unit members will be reasonably assured of notification.
- B. The Administrator will review all emails of interest that have been sent to the Human Resource Director's classified administrative assistant prior to the filling of the vacancy. Each employee who indicated interest in a position that has become available will be considered an applicant for that position. All such applications will then be evaluated pursuant to the criteria contained in Section 27.04 below.

For purposes of filling summer vacancies pursuant to this Section, the first sentence in Section 27.05(A) below regarding interviews will not be applicable.

- C. Vacancy postings shall contain at least the following information:
 - 1. Title of the position.
 - 2. Application deadline.
 - 3. Starting date of the position, if known.
 - 4. Qualifications for the position.

5. Anticipated number of days per year and hours per day.
 6. Job description, if requested and available.
- D. If an employee's bid for a position has been denied, he/she will, upon request, receive a written or oral explanation of the reasons for the denial.

27.03 CRITERIA FOR EVALUATING BIDS FOR AIDE POSITIONS

- A. Qualifications of the applicant, including but not limited to the applicant's education, relevant experience, aptitude for the position, attendance record, and performance evaluations.
- B. Results of written and/or performance examinations.
- C. Recommendations of the building principal and/or supervisors involved.
- D. Where the foregoing factors are equal, preference will be given to the internal applicant with the greatest seniority.

27.04 AWARDING OF AIDE POSITIONS

- A. All qualified bargaining unit applicants will be granted an interview. If a bargaining unit applicant is judged by the Employer to be the most qualified applicant for the vacancy, he/she will be awarded the position.
- B. Vacancies may be filled from outside the bargaining unit only if the most qualified applicant is not from within the bargaining unit.
- C. The Employer has the sole discretion to determine whether an applicant is the "most qualified applicant."

27.05 PROFESSIONAL TRAINING FOR AIDES OUTSIDE OF THE WORK DAY

- A. Employees may request to attend professional training outside of the employee's normal work day. If the employer agrees that the requested training would be beneficial for both the employee and the District, the Employer may grant all or part of the request. At its discretion, the employer may pay for the cost of the training, and/or pay the employee's hourly rate for a specific number of hours. Travel time will not be compensated.
- B. Approval of the request must be in writing from the appropriate supervisor, and must specify the parameters of the approval.

27.06 AIDES WORK DAY AND YEAR

The work year shall consist of the student days, the day before the student year, and 11 paid holidays.

Educational aides will be released from work two hours early on three separate days (the days immediately preceding Thanksgiving break, December Holiday break, and Spring break) as aligned to the teachers.

Educational aides will be required to make-up the equivalent number of released hours by attending staff meetings in their assigned building. Such aides will be responsible for working through the dates and meeting times with their building principals.

All aides who work in District buildings will normally be scheduled for the same number of hours (currently 7.25 hours per day).

The Employer will pay the employee's hourly rate for the minimum number of hours that the pre-school classroom aides are required to spend in training to be certified. Aides shall be permitted to work from home during closure due to epidemic/pandemic when certified staff are also allowed to do so.

APPLICABILITY OF OTHER ARTICLES TO AIDES

A. The provisions of this Article 27 supercede, with respect to aides, any conflicting provisions from other Articles of the Negotiated Agreement.

B. Except as indicated above, and in Section 27.01(F), all provisions from the other Articles of this Negotiated Agreement shall apply to aides.

Article 28

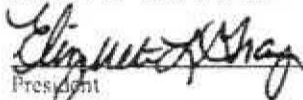
DURATION AND IMPLEMENTATION

28.01 This Agreement shall be effective July 1, 2021 and shall remain in effect until midnight, June 30, 2024.

28.02 This Agreement supersedes any previous Negotiated Agreement between the parties and any policy, rules, regulations or practices of the Employer which may be contrary or inconsistent with the terms of this Agreement.

28.03 If any provision of this Agreement is found to be contrary to law, then such provision or application shall not be deemed valid except to the extent permitted by law, but all other provisions of this Agreement shall continue in full force and effect.

GROVEPORT MADISON LOCAL
BOARD OF EDUCATION

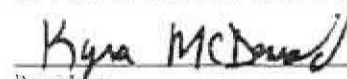
 6/15/2021
President Date

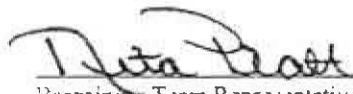
 6/15/2021
Treasurer Date

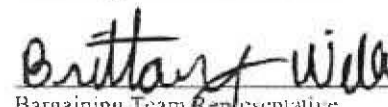
 6/15/2021
Superintendent Date

 6/15/2021
Director of Personnel Date

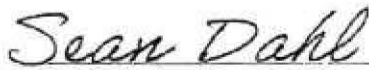
LOCAL #312, OHIO ASSOCIATION
OF PUBLIC SCHOOL EMPLOYEES

 6/15/2021
President Date

 6/15/2021
Bargaining Team Representative Date

 6/15/2021
Bargaining Team Representative Date

 6-15-2021
Bargaining Team Representative Date

 6/23/2021
OAPSE Staff Representative Date

APPENDIX A

OFFICE USE ONLY

GRIEVANCE FORM

Received _____
Date _____
By _____

Name of Grievant _____

Informal Step of Grievance Procedure was conducted: Yes No

Date and Place of Informal Conference _____

Administrator/Supervisor (signature)	Date	Grievant (signature)	Date
--------------------------------------	------	----------------------	------

This grievance is being filed or appealed to step: 1 2 3 4 5 6 (Circle One)

Date of alleged violation _____

Specific Article and Section(s) of the Negotiated Agreement claimed to be violated:

Nature of the grievance (include specific facts):

Relief Sought:

Signature of Grievant _____ Date _____

Response by Administrator: _____

Signature of Administrator _____ Date _____

Attach copies of all previous steps to this sheet. One copy to Administrator and one copy to grievant.
If additional space is needed, attach an additional sheet.

EVALUATION FORM

Guidelines for Evaluation

24. Explanation of evaluation categories:

24. **Personal appearance:** Neat and clean, appropriate for the job being performed.

2. **Attendance:** Adequate job performance requires reliability and good attendance patterns. When rating attendance, the evaluator will take into consideration any special circumstances affecting employee's attendance.

Special attendance situations will be evaluated by the Director of Personnel in charge.

3. **Promptness:** Meeting time schedules being reliable). Completing work on time (reports, correspondence, etc.). In the area of transportation – being in position to load at the required time as well as loading and unloading during the routes at the required times.

4. **Cooperativeness:** Ability to get along with others, generally pleasant, follows directions, promotes harmony and is willing to sacrifice for the good of the entire group.

5. **Quality of work:** Related to the efficiency of the worker's accuracy, neatness, completeness, willingness to learn new methods.

6. **Quantity of work:** Amount of work accomplished related to the work expected. Completes assigned tasks within time allotted.

7. **Job knowledge and skill:** Employee's knowledge of the job and other work related skills including the ability to apply the knowledge. Should possess the basic skills required to accomplish the assigned responsibility. Attitude toward job, initiative, industry.

8. **Relationship to others:** Proper attitude toward superiors, co-workers, students, subordinates and the public.

9. **Control of students:** The ability to handle discipline. Ability to communicate. Ability to use varied techniques to handle different types of student situations. Also, the ability to deal with the public if necessary.

10. **Supervisory skill:** Ability to organize work, employee training and evaluation, judgment, leadership, completes required reports.

24. Procedure for evaluations after completed:

24. One (1) copy is to be given to the employee.

2. One (1) copy shall be retained by the evaluator.

3. The original copy shall be forwarded to the Administrator. This copy shall be placed in the employee's personnel file.

EMPLOYEE EVALUATION FORM

APPENDIX C

NAME _____ BUILDING _____ POSITION _____

Description	Unsatisfactory	Needs Improvement	Meets Expectations	Exceeds Expectations
Personal Appearance				
Attendance				
Promptness				
Cooperativeness				
Quality of Work				
Quantity of Work				
Job Knowledge & Skill				
Relationship with others				
Control of Students				
Supervisory Skills				

Mark N/A if a particular item is not applicable to a particular employee

_____ Date _____ Comments of Evaluator: _____
(Signature of Evaluator)

Evaluation Summary:

- _____ 1. Satisfactory
- _____ 2. Satisfactory with qualifications. The following deficiencies must be improved during the next evaluation period:
- a. _____
- b. _____
- c. _____
- _____ 3. Unsatisfactory

Yes / No Recommended for contract renewal (circle response if applicable)

EMPLOYEE: Your signature shows that you have received a copy of this report and that the evaluator has discussed it with you. *It does not mean that you agree with this evaluation.

Employee Signature _____ Date _____

*You may, if you desire, submit a statement on a separate sheet which will be filed with this evaluation. Such additional explanatory material should be completed within 15 days after evaluation.

FAMILY AND MEDICAL LEAVE

The Family Medical Leave Act (FMLA) entitles eligible employees up to 12 work weeks of unpaid family or medical leave in a twelve-month period. The twelve (12) month period runs backward from the first date of the employee's requested FMLA leave. If you are eligible for FMLA leave, your health benefits will be maintained during this leave under the same conditions as if you continued to work, and you will be reinstated to the same or an equivalent job with the same pay, benefits and terms and conditions of employment upon your return from leave in accordance with this policy and applicable law. If you do not return to work following FMLA leave for a reason other than: (1) the continuation, recurrence, or onset of a serious health condition which would entitle you to FMLA leave; or (2) other circumstances beyond your control, you may be required to reimburse the Board for the share of health insurance premiums paid on your behalf during your FMLA leave.

FAMILY AND MEDICAL LEAVE ACT OF 1993

Bargaining unit members and the Board shall be entitled to all of the rights and privileges as outlined in the Family and Medical Leave Act of 1993. For information, please contact the Human Resources Department.

DEFINITIONS

A "Serious Health Condition" means an illness, injury, impairment, or physical or mental condition that involves one of the following:

1. Hospital Care

Inpatient care (i.e., an overnight stay) in a hospital, hospice, or residential medical care facility, including any period of incapacity or subsequent treatment in connection with or consequent to such inpatient care.

2. Absence Plus Treatment

(a) A period of incapacity of more than three consecutive calendar days (including any subsequent treatment or period of incapacity relating to the same condition), that also involves:

(1) Treatment¹ two or more times by a health care provider, by a nurse or physician's assistant under direct supervision of a health care provider, or by a provider of health care services (e.g., physical therapist) under orders of, or on referral by, a health care provider; or

(2) Treatment by a health care provider on at least one occasion which results in a regimen of continuing treatment² under the supervision of the health care provider.

3. Pregnancy- Any period of incapacity due to pregnancy, or for prenatal care.

4. Chronic Conditions Requiring Treatments - A chronic condition which:

(a) Requires periodic visits for treatment by a health care provider, or by a nurse or physician's assistant under direct supervision of a health care provider;

(b) Continues over an extended period of time (including recurring episodes of a single underlying condition); and

(c) May cause episodic rather than a continuing period of incapacity (e.g., asthma, diabetes, epilepsy, etc.).

5. Permanent/Long-term Conditions Requiring Supervision

A period of incapacity which is permanent or long-term due to a condition for which treatment may not be effective. The employee or family member must be under the continuing supervision of, but need not be receiving active treatment by, a health care provider. Examples include Alzheimer's, a severe stroke, or the terminal stages of a disease.

6. Multiple Treatments (Non-Chronic Conditions)

Any period of absence to receive multiple treatments (including any period of recovery therefrom) by a health care provider or by a provider of health care services under orders of, or on referral by, a health care provider, either for restorative surgery after an accident or other injury, or for a condition that would likely result in a period of incapacity of more than three consecutive calendar days in the absence of medical intervention or treatment, such as cancer (chemotherapy, radiation, etc.), severe arthritis (physical therapy), or kidney disease (dialysis).

¹ Treatment includes examinations to determine if a serious health condition exists and evaluations of the condition. Treatment does not include routine physical examinations, eye examinations, or dental examinations.

² A regimen of continuing treatment includes, for example, a course of prescription medication (e.g., an antibiotic) or therapy requiring special equipment to resolve or alleviate the health condition. A regimen of treatment does not include the taking of over the counter medications such as aspirin, antihistamines, or salves; or bed rest, drinking fluids, exercise, and other similar activities that can be initiated without a visit to a health care provider.

MEMORANDA OF UNDERSTANDINGTIME CLOCKS

The Union agrees that the Board has the right to institute a time clock system in the District at any time without further negotiation with the Union.

LONGEVITY

Employees who have completed their 18th year of service in the District will receive a yearly stipend of \$280.

HEAD CUSTODIANS

Head Custodians that leave their positions do not need to be replaced by an employee with the title of Head Custodian.

The Employer will develop a new job description for the Head Custodian position. Prior to or during the 2018-19 school year, the District will post and fill the Head Custodian position at each building, except for those buildings who already have someone who is serving as, and being paid a stipend for, the position of Head Custodian.

This MOU is not a guarantee that any or all buildings will always have an assigned Head Custodian.

PROTOCOL FOR HANDLING STUDENT CAUSED INJURIES

1. The injured employee should immediately report the incident to their supervisor/designee, and fill out the "Employee Incident/Accident Report" form. If the employee needs medical attention, it is recommended they go to Mount Carmel East, if possible. Medical expenses from such an injury will be covered by worker's compensation, with any remaining costs covered by the District. A claim for worker's compensation must be filed by the employee.
2. If the injured employee is unable to return to work due to the injury, he/she is eligible for up to three (3) days of paid leave, without having to use sick leave. A doctor's note will be required for verification of the need to be absent from work pursuant to this paragraph.
3. If the injured employee does not have a physical injury that requires the employee to be absent from work, but has suffered mental trauma from the incident, he/she may request up to three (3) days of paid leave from the Administrator. The granting of such a request shall be at the complete discretion of the Administrator.

ORIENTATION FOR NEW EMPLOYEES

The Employer will provide an orientation to new employees, including job descriptions and necessary passwords. The Union President will be provided the opportunity for a brief meeting with new employees to discuss union issues (See Section 3.12).

LICENSURE

If the Employer requires that an employee obtain a licensure/certification that is not required by law, and has not previously been required for his/her position, the Employer will pay for the cost of required training for the license, the cost of the license itself, and the cost of maintaining the license (as long as the licensure remains a requirement of the Employer).

CAFETERIA DRESS STANDARDS

Good grooming and personal hygiene are mandatory. All of us are expected to maintain the highest standards of personal cleanliness.

These are the grooming standards that need to be met, not only for a professional personal appearance, but also per health department regulations.

HAIR: Clean and neat at all times. Long hair must be pulled back or put up. A hair restraint must be worn at all times in the kitchen. Acceptable hair restraints include hairnets, visors or ball caps.

JEWELRY: Jewelry worn must be kept to a minimum.
 Earrings- No dangling or loop earrings should be worn for safety reasons.
 Rings- Rings that protrude should be avoided as they may be damaged or get caught in equipment.

NAILS: Need to be cleaned and trimmed. Nail polish should not be worn due to possible contamination, unless wearing intact gloves in good repair.

CLOTHING: All clothing must be clean and free of stains, holes and rips. A clean apron must be worn at all times and changed as needed during shift. Shoes need to provide good support and have a non-slip grip bottom. Socks or hose must be worn at all times.

The following are examples of clothing that is not acceptable for working:

- *Tank tops
- *Halter tops
- *Bare midriff tops
- *Thermal or underwear type tops
- *Sleeveless tops
- *Sweatpants
- *Worn out or dirty clothes
- *T-shirts with indecent or inappropriate pictures or words
- *Open toe shoes
- *Shorts
- *Jeans (except on Casual Fridays)
- *Capri pants are acceptable as long as they fall mid-calf or longer,

**ACCEPTABLE
CLOTHING:**

- *White, khaki or black pants
- *Solid color shirts
- *White (limited color) tennis shoes
- *Cruiser aprons will be provided

2021/2022 BASE
FY22 thru FY24

Step		Maint		Head Maint		Day Custodian		Head Custodian		Night Custodian		Clerical		Clerical Activity Clerk		Aides		Cook		Head Cook
0	\$	20.28	\$	20.59	\$	17.10	\$	17.85	\$	17.57	\$	18.35	\$	18.97	\$	16.10	\$	15.02	\$	17.01
1	\$	20.66	\$	20.97	\$	17.42	\$	18.17	\$	17.89	\$	18.64	\$	19.27	\$	16.46	\$	15.31	\$	17.32
2	\$	21.05	\$	21.35	\$	17.76	\$	18.51	\$	18.23	\$	18.95	\$	19.57	\$	16.83	\$	15.61	\$	17.65
3	\$	21.43	\$	21.73	\$	18.08	\$	18.83	\$	18.55	\$	19.24	\$	19.87	\$	17.19	\$	15.90	\$	17.96
4	\$	21.74	\$	22.04	\$	18.34	\$	19.09	\$	18.81	\$	19.48	\$	20.11	\$	17.55	\$	16.14	\$	18.21
5	\$	22.04	\$	22.34	\$	18.59	\$	19.34	\$	19.06	\$	19.71	\$	20.34	\$	17.91	\$	16.37	\$	18.46
6	\$	22.38	\$	22.69	\$	18.89	\$	19.64	\$	19.36	\$	19.93	\$	20.57	\$	18.27	\$	16.57	\$	18.68
7	\$	22.64	\$	22.95	\$	19.13	\$	19.88	\$	19.60	\$	20.19	\$	20.84	\$	18.58	\$	16.81	\$	18.94
8	\$	22.93	\$	23.23	\$	19.40	\$	20.15	\$	19.87	\$	20.39	\$	21.04	\$	18.94	\$	17.05	\$	19.20
9	\$	23.25	\$	23.56	\$	19.71	\$	20.46	\$	20.18	\$	20.60	\$	21.25	\$	19.16	\$	17.31	\$	19.48
10	\$	23.62	\$	23.93	\$	20.01	\$	20.76	\$	20.48	\$	20.86	\$	21.52	\$	19.46	\$	17.59	\$	19.79
11	\$	23.99	\$	24.29	\$	20.25	\$	21.00	\$	20.72	\$	21.21	\$	21.88	\$	19.83	\$	17.92	\$	20.14
12	\$	24.03	\$	24.33	\$	20.31	\$	21.06	\$	20.78	\$	21.26	\$	21.93	\$	19.88	\$	17.97	\$	20.19
13	\$	24.07	\$	24.38	\$	20.36	\$	21.11	\$	20.83	\$	21.31	\$	21.97	\$	19.93	\$	18.02	\$	20.25
14	\$	24.11	\$	24.42	\$	20.42	\$	21.17	\$	20.89	\$	21.36	\$	22.02	\$	19.98	\$	18.07	\$	20.30
15	\$	24.23	\$	24.53	\$	20.59	\$	21.34	\$	21.06	\$	21.49	\$	22.16	\$	20.15	\$	18.23	\$	20.48
16	\$	24.53	\$	24.84	\$	20.97	\$	21.72	\$	21.44	\$	21.81	\$	22.48	\$	20.30	\$	18.46	\$	20.72
17	\$	24.63	\$	24.94	\$	21.07	\$	21.82	\$	21.54	\$	21.91	\$	22.58	\$	20.38	\$	18.56	\$	20.82
18	\$	24.72	\$	25.03	\$	21.17	\$	21.92	\$	21.64	\$	22.00	\$	22.68	\$	20.45	\$	18.65	\$	20.92
19	\$	24.81	\$	25.12	\$	21.27	\$	22.02	\$	21.74	\$	22.10	\$	22.78	\$	20.54	\$	18.73	\$	21.01
20	\$	24.90	\$	25.21	\$	21.36	\$	22.11	\$	21.83	\$	22.19	\$	22.88	\$	20.62	\$	18.80	\$	21.09
21	\$	25.06	\$	25.36	\$	21.52	\$	22.27	\$	21.99	\$	22.35	\$	23.04	\$	20.78	\$	18.96	\$	21.26
22	\$	25.21	\$	25.51	\$	21.68	\$	22.43	\$	22.15	\$	22.51	\$	23.20	\$	20.93	\$	19.11	\$	21.43
23	\$	25.31	\$	25.61	\$	21.79	\$	22.54	\$	22.26	\$	22.62	\$	23.31	\$	21.04	\$	19.21	\$	21.54
24	\$	25.40	\$	25.70	\$	21.89	\$	22.64	\$	22.36	\$	22.72	\$	23.41	\$	21.15	\$	19.32	\$	21.64
25	\$	25.50	\$	25.80	\$	22.00	\$	22.75	\$	22.47	\$	22.83	\$	23.52	\$	21.26	\$	19.42	\$	21.75

